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Case Number: 25STLC05336 Hearing Date: September 2, 2026 Dept: 26

TENTATIVE RULING:

Defendant The Cheesecake Factory Restaurants, Inc.’s Motion for Terminating Sanction is granted in part and denied in part. The Court denies the request for terminating sanctions. Defendant’s request for monetary sanctions is granted. Plaintiff Dilzia Newman is ordered to pay monetary sanctions in the sum of $2,310.00 to counsel for Defendant within 20 days’ service of this Order.

Analysis:

On July 11, 2025, Plaintiff Dilzia Newman (“Plaintiff”) filed the instant action for negligence and products liability against Defendant The Cheesecake Factory Restaurants, Inc. (“Defendant”). Defendant filed its Answer and Cross-Complaint on August 29, 2025.

Defendant filed Motions to Compel Further Discovery Responses to Form Interrogatories, Set One and Special Interrogatories, Set One; Requests for Monetary Sanctions, which the Court granted on January 22, 2026. (Minute Order, 01/22/26.) Pursuant to the order, Plaintiff was to serve further responses to Form Interrogatories 6.4, 6.7, 10.3, 11.1, 11.2, 12.1, and 12.6, and Special Interrogatories 14, 20, 25, and 31. (Ibid.) Defendant filed a Motion to Compel Further Responses to Request for Production, Set One; Request for Monetary Sanctions, which the Court granted on January 26, 2026, ordering Plaintiff to serve further responses to Request for Production of Documents, Set One, Nos. 2-12, 13, 17-19, 21-27, and 29-30 within 20 days’ service of this order. (Minute Order, 01/26/26.)

On June 11, 2026, Defendant filed and served the instant Motion for Order for Terminating Sanctions. Plaintiff filed an opposition on August 26, 2026 and Defendant replied on August 27, 2026.

Discussion

Defendant seeks an order entering a judgment of dismissal with prejudice against Plaintiff under Code of Civil Procedure section 2023.030, pursuant to which the Court may impose a terminating sanction by one of the following orders:

(1)
An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2)
An order staying further proceedings by that party until an order for discovery is obeyed.

(3)
An order dismissing the action, or any part of the action, of that party.

(4)
An order rendering a judgment by default against that party.

(Code Civ. Proc., § 2023.030, subd. (d).) Where a party willfully disobeys a discovery order, courts have the discretion to impose terminating, issue, evidence or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subds. (d), (g); R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495.) The court should look at the totality of the circumstances in determining whether terminating sanctions are appropriate. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Sup. Ct. (1986)

180 Cal.App.3d 701, 707.)

As set forth above, on January 22 and 26, 2026, the Court granted Defendant's discovery motions, requiring Plaintiff to serve responses within 20 days' service of the orders. (Motions, Byrne Decl., ¶¶2-5 and Exhs. A-B.) Notice of the rulings was served on Plaintiff on January 22 and 26, 2026. (Ibid.) Defendant granted Plaintiff a 30-day extension to respond, but Plaintiff continued to fail to respond. (Id. at ¶¶6-7 and Exhs. C-D.) As of the filing of the instant Motion, Plaintiff had not served responses to the discovery requests. (Id. at ¶8.)

Plaintiff filed and served an untimely opposition to the instant Motion on August 26, 2026. In the opposition, Plaintiff's counsel declares that when Plaintiff changed her phone number, counsel lost contact with her, which contact was restored only on August 24, 2026. (Opp., Yeager Decl., ¶¶4-5.) After contact was restored on or about August 24, 2026, Plaintiff provided supplemental responses. (Id. at ¶5 and Exhs. A-C.) Counsel's declaration is unsigned. (Cal. R. Ct., rule 2.257(b).) The Court cannot credit it for that reason. Even crediting the Declaration, the Opposition does not excuse Plaintiff's failure to comply with the Court's orders or long delay in producing supplemental responses. It documents no more than that Plaintiff was unreachable by counsel for about eight months, during which period Plaintiff was obligated by court order to respond to discovery, and that Plaintiff's counsel did not explain this circumstance to opposing counsel or the Court at any time during that period, until filing the untimely opposition. Although the Court does not assess the assertion in this decision, Defendant contends that the supplemental responses remain inadequate. (Id. at p. 3:10-17.)

The Court will not impose terminating sanctions, which the Court views as a penalty of last resort, most apt when a party appears to have abandoned a case. Plaintiff's late supplemental responses and late opposition belie total abandonment of the case, if just barely. The Court will, however, grant Defendant's request for imposition of monetary sanctions. (Code Civ. Proc., § 2023.030, subd. (a).) Plaintiff's persistent failure to respond to authorized methods of discovery, disregard of the Court's discovery orders, and virtual non-response to the instant motion, demonstrate a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (a).) Plaintiff's unexplained failure to maintain contact with her counsel for a months-long stretch does not justify the conduct. (Id.) Defendant moves for monetary sanctions in the sum of $2,760.00, based on an hourly rate of $450 and a $60 filing fee. Counsel attests to spending three hours drafting the motion and declaration, and an additional three hours reviewing the opposition, preparing a reply, and appearing at the hearing, for a total of six hours. (See Motion, Byrne Decl., ¶9.) The Court finds the time excessive for a relatively straightforward motion and will reduce it by one hour to $2,310.00. Sanctions are imposed against Plaintiff individually.

Conclusion

Defendant The Cheesecake Factory Restaurants, Inc.'s Motion for Terminating Sanction is granted in part and denied in part. The Court denies the request for terminating sanctions. Defendant's request for monetary sanctions is granted. Plaintiff Dilzia Newman is ordered to pay monetary sanctions in the sum of $2,310.00 to counsel for Defendant within 20 days' service of this Order.

Moving party to give notice.